

the Receiver for the Metropolitan Police District shall have power under that section, as so amended, to borrow further sums, not exceeding in the aggregate four million pounds, for the purposes of any purchase or of any works under the said enactments required for—

- (a) quarters for members of the Metropolitan Police Force;
- (b) establishments for police training;
- (c) police stations;
- (d) the central office of the Metropolitan Police Force.

Loans by
Public
Works Loan
Commis-
sioners.

2. The Public Works Loan Commissioners may, with the consent of the Treasury, lend to the Receiver for the Metropolitan Police District any money which he has power to borrow for the purposes mentioned in the last foregoing section.

Short title
and citation.

3. This Act may be cited as the Metropolitan Police (Borrowing Powers) Act, 1935, and this Act and the Metropolitan Police Acts, 1829 to 1931, may be cited together as the Metropolitan Police Acts, 1829 to 1935.

CHAPTER 17.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army and the Air Force. [11th April 1935.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should

consist of one hundred and fifty-two thousand two hundred, including those to be employed at the depots in the United Kingdom for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions, other than Aden :

And whereas under the Air Force (Constitution) Act, 7 & 8 Geo. 5. 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of thirty-three thousand, including those employed as aforesaid, but exclusive of the numbers serving as aforesaid : c. 51.

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and thirty-five on the following days :—

- (a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1935.

Army Act
and Air
Force Act
to be in
force for
specified
times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say :—

- (a) Within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and thirty-five, to the thirtieth day of April, one thousand nine hundred and thirty-six, both inclusive; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, one thousand nine hundred and thirty-five, to the thirty-first day of July, one thousand nine hundred and thirty-six, both inclusive.

(2) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

(3) A person subject to military law or to the Air Force Act shall not be exempted from the provisions of the Army Act or Air Force Act by reason only that the number of the forces for the time being in the service of

His Majesty, exclusive of the marine forces, is either greater or less than the numbers hereinbefore mentioned.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act or the Air Force Act the prices specified in the First Schedule to this Act. Prices in respect of billeting.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS.

PART I.

AMENDMENTS OF THE ARMY ACT APPLICABLE ALSO (SUBJECT TO MODIFICATIONS) TO THE AIR FORCE ACT.

4. In section sixty-four of the Army Act (which relates to the place in which certain sentences are to be served), for subsections (3) and (3A) and so much of subsection (4) as precedes the provisos there shall be substituted the following words:— Amendment of Army Act, s. 64.

“(4) A military prisoner or soldier under sentence of detention shall—

- (i) if he was sentenced in a Dominion, India or a colony, undergo his sentence either in that Dominion, India or that colony (as the case may be), or in the United Kingdom, or in such other place as may be prescribed;
- (ii) if he was sentenced in a foreign country, undergo his sentence either in that country, or in any other foreign country in which the force with which he is serving may be, or in the United Kingdom, or in such other place as may be prescribed:”.

5. In paragraph (b) of subsection (1) of section one hundred and sixty-three of the Army Act (which paragraph relates to the proof of certain facts by documentary evidence), for the words “respecting the service of any person in, or the discharge of any person from, any Amendment of Army Act, s. 163.

portion of His Majesty's forces (including any Dominion force), or respecting a person not having served in or belonged to any portion of those forces," there shall be substituted the following words, "with respect to a person—

- (i) having, or not having, at any time or times served in, or been discharged from, any part of His Majesty's forces (including any Dominion force); or
- (ii) having, or not having, held any rank or appointment in, or been posted or transferred to, any part of such forces, or having, or not having, served in any particular country or place; or
- (iii) being, or not being, authorised to use or wear any military decoration, medal, medal ribbon, badge, wound stripe or emblem, the use or wearing of which by an unauthorised person is under this Act an offence,".

Amendment
of Army
Act, s. 175.

6. In section one hundred and seventy-five of the Army Act (which relates to the persons subject to military law as officers), after paragraph (10) there shall be inserted the following new paragraph:—

"(10A) Any officer not otherwise subject to military law who under the authority, or with the approval, of the Army Council is employed with his consent outside the United Kingdom either on military service with an armed force or in any other military capacity;".

Application
of Part I to
Air Force
Act.

7. References in the foregoing sections of this Part of this Act to the Army Act shall be deemed to include references to the Air Force Act, and the provisions of the said sections shall in their application to the Air Force Act have effect subject to any of the general modifications set out in Part I of the Second Schedule to the Air Force (Constitution) Act, 1917, which apply, and to the following special modification, namely, that for the word "military" where that word occurs in section five of this Act and where it last occurs in section six of this Act there shall be substituted the word "air-force."

PART II.

AMENDMENTS OF THE AIR FORCE ACT.

8.—(1) In subsection (1) of section eighty-four of the Air Force Act (which relates to the re-engagement of air-men), for the words “for such further period” there shall be substituted the words “either (a) for such further period” and at the end of the subsection there shall be added the words “or (b) for any shorter period, being either a period of air force service or a period comprising a term of air force service and a term of service in the reserve.”

Amend-
ments of
Air Force
Act, s. 84.

The amendments specified in the Second Schedule to this Act, being amendments consequential on the foregoing amendments, shall be made in the sections of the Air Force Act specified in that Schedule.

(2) In subsection (1) of the said section eighty-four, for the words “nine years” there shall be substituted the words “eight years”.

9. In section one hundred and forty-six of the Air Force Act (which relates to the disqualification of officers on the active list for holding certain offices), for the words “on the active list within the meaning of any Royal Warrant for regulating the pay and promotion of the regular air force” there shall be substituted the words “on the active list within the meaning of any order of His Majesty defining that term.”

Amendment
of Air Force
Act, s. 146.

SCHEDULES.

FIRST SCHEDULE.

Section 3.

PRICES IN RESPECT OF BILLETING.

Accommodation to be provided.	Maximum price.
Lodging and attendance for a soldier where meals furnished.	Tenpence a night for the first soldier and eightpence a night for each additional soldier.

1ST SCH.
—cont.

Accommodation to be provided.

Maximum price.

Breakfast as specified in Part I of the Second Schedule to the Army Act. Sevenpence each.

Dinner as so specified - - - - Tenpence.

Supper as so specified - - - - Fourpence.

Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat. Tenpence a night for the first soldier and eightpence a night for each additional soldier.

Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw a day for each horse. Two shillings and threepence a day.

Stable room without forage - - - Sixpence a day.

Lodging and attendance for an officer - Three shillings a night.

Note.—An officer shall pay for his food.

In the application of this Schedule to the Air Force, references to the Air Force Act and to an airman shall be substituted for references to the Army Act and to a soldier.

Section 8.

SECOND SCHEDULE.

CONSEQUENTIAL AMENDMENTS OF AIR FORCE ACT.

The words “or re-engagement” shall be inserted after the word “enlistment” in subsections (1) and (4) of section eighty-eight, in subsection (3) of section ninety, and in the first two places where that word occurs in section eighty-nine.

In, section eighty-nine the words “or declaration on re-engagement” shall be inserted after the words “attestation paper”.